

Chapter

The Supreme Court

1. The judiciary is the system of courts that interprets and guards the Indian Constitution. With reference to the Supreme Court of India, answer the following:

(i) What is the composition of the Supreme Court? Why is it called the Court of Record?

(ii) Explain the power of Judicial Review.

(iii) What is meant by the term Original Jurisdiction? Mention any three cases which come under this jurisdiction.

MAIN 2024

2. What do you understand by ‘the Supreme Court is the guardian of the Fundamental Rights’?

SQP 2023

3. When the Supreme Court reviews any judgement made by it to remove an error, it falls under _____ jurisdiction.

(a) Advisory

(b) Revisory

(c) Original

(d) Appellate

Main 2023

4. Mention any two ways in which the Constitution ensures the independence of the Judiciary from the Executive.

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5. Who decides the salaries and other emoluments of the Judges of the Supreme Court ? Under what circumstances can the salaries and allowances of the Judges of Supreme Court be reduced ?

COMP 2022

6. The independence of the judiciary is necessary in a federal democratic set-up. In this context, describe the part played by the following :

(i) Security of Tenure of Office

(ii) Security of Salary and Allowances of the Judges.

(iii) Power to punish for Contempt of itself.

COMP 2021

Solution

1.

Ans:

(i) Composition of the Supreme Court and why it is called the Court of Record:

The Supreme Court of India consists of the Chief Justice of India and a maximum of 34 other judges.

It is called a Court of Record because its judgments and decisions are preserved as permanent records. These records can be referred to in future cases and are binding on all lower courts. The Supreme Court also has the power to punish for contempt of court.

(ii) Power of Judicial Review:

Judicial Review is the power of the Supreme Court to examine laws and executive actions. If any law or action is found to be against the provisions of the Constitution, the Court can declare it null and void.

(iii) Original Jurisdiction:

Original Jurisdiction means the authority of the Supreme Court to hear certain cases directly, without them being referred from lower courts.

Cases under Original Jurisdiction include:

- Disputes between the Union Government and one or more States
- Disputes between two or more States
- Cases related to the enforcement of Fundamental Rights under Article 32

2.

Ans: The Supreme Court is called the guardian of Fundamental Rights because any citizen whose Fundamental Rights are violated can directly approach it for their enforcement. The Supreme Court has the power to issue writs such as **Habeas Corpus, Mandamus, Prohibition, Quo-Warranto** and **Certiorari** to protect and safeguard these rights, ensuring that they are not infringed by the State or any authority.

3.

Ans: (b) Revisory

Explanation:

When the Supreme Court reviews or reconsiders its own judgment to correct an error, it is exercising **Revisory Jurisdiction**. Under this power, the Court can revise its earlier decisions to ensure justice and remove mistakes.

4.

Ans: The Constitution ensures the independence of the Judiciary from the Executive in the following ways:

1. Security of Tenure: Judges cannot be removed easily and remain in office until the prescribed age, enabling them to give impartial judgments without fear or pressure.

2. Independent Appointments: The appointment of judges is kept free from direct executive control, which helps maintain the autonomy and independence of the judiciary.

5.

Ans: The salaries and other emoluments of the Judges of the Supreme Court are determined by the Parliament through law and are charged on the Consolidated Fund of India.

Their salaries and allowances can be reduced only during a **Financial Emergency** declared under **Article 360** of the Constitution. In all other circumstances, their salaries cannot be reduced, ensuring the independence of the judiciary.

6.

Ans:

(i) Security of Tenure of Office

Judges of the Supreme Court and High Courts enjoy security of tenure. They cannot be removed easily and remain in office till the prescribed retirement age, ensuring freedom from fear or pressure while delivering judgments.

(ii) Security of Salary and Allowances

The salaries and allowances of judges are charged on the Consolidated Fund of India and cannot be reduced during their term of office, except during a Financial Emergency. This guarantees their financial independence.

(iii) Power to Punish for Contempt of Itself

The Supreme Court and High Courts have the authority to punish for contempt of court. This power safeguards the dignity, authority and independence of the judiciary and ensures obedience to its orders.